

S I M U L A F L Y
PRIVACY POLICY for MOBILE APPLICATION
SimulaFly app for iOS (Apple App Store) and Android (Google Play)

Data Fiduciary	Simula Technologies LLP, a limited liability partnership incorporated under the Limited Liability Partnership Act, 2008 (LLPIN: ACR-6328), Registered Office: Seat No. FFSD/50, Plot No. 20, Block H-1/A, Sector 63, Noida 201301, Uttar Pradesh, India
Grievance Officer	Shourya Pratap; support@simulafly.com
Platforms	iOS (Apple App Store) and Android (Google Play Store)
Effective Date	08-06-2026

CONTENTS

1. Introduction, Scope and Acceptance.....	3
2. Definitions	3
3. Who We Are and Who To Contact.....	4
4. Personal Data We Collect	4
4.2 Data you provide	4
4.3 Data collected automatically	4
4.4 Device permissions	5
4.5 Data received from third parties.....	5
4.6 Data we do not seek	5
5. Purposes of Processing and Lawful Grounds	5
6. Notice, Consent, Withdrawal and Consent Managers	6
7. AI Features, Model Improvement and Your Choices	7
8. Merchant Data Sharing, Buyer Signals and Profile Unlocks	8
8.2 Your identity is masked by default	8
8.3 Signals shared with Merchants before any unlock	8
8.4 What Merchants never receive	8
8.5 Unlock Events- when identity is shared	8
8.6 Merchant obligations and onward use.....	8
8.7 Intent scores are estimates.....	8
8.8 Your controls.....	8
9. Other Disclosures of Personal Data	9
10. Cross-Border Transfers.....	9
11. Retention and Erasure.....	9
12. Security of Personal Data.....	10
13. Personal Data Breach Response.....	11
14. Children and Verifiable Parental Consent	11
15. Your Rights and How to Exercise Them	11
16. Account Deletion	12
17. SDKs, Cookies and Similar Technologies in the App	12
18. Communications, Marketing Preferences and DND.....	13
19. Third-Party Services and Links	13
20. Changes to this Policy.....	13
21. Grievance Redressal and Escalation	13
22. Governing Law, Framework and Interpretation.....	14

1. Introduction, Scope and Acceptance

- 1.1 This Privacy Policy ("**Policy**") is published by **Simula Technologies LLP**, a limited liability partnership incorporated under the Limited Liability Partnership Act, 2008 (LLPIN: ACR-6328), having its registered office at Seat No. FFSD/50, Plot No. 20, Block H-1/A, Sector 63, Noida 201301, Uttar Pradesh, India ("**SimulaFly**", "**we**", "**our**" or "**us**"). SimulaFly is the data fiduciary in respect of personal data processed through the SimulaFly mobile application, available on the Apple App Store (iOS) and Google Play Store (Android) (the "**App**").
- 1.2 This Policy describes the personal data we process through the App, the purposes and lawful grounds of that processing, the persons with whom personal data is shared, the safeguards we apply, the period for which data is retained, and the rights and remedies available to you. It applies to every person who downloads, installs, registers on or uses the App ("**you**" or "**user**").
- 1.3 This Policy governs the App only. Personal data collected through the website www.simulafly.com (including the merchant portal) is governed by the separate SimulaFly Website Privacy Policy. Third-party applications, websites and services linked from the App are governed by their own privacy policies.
- 1.4 This Policy is published in accordance with Rule 4 of the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011 and Rule 3(1)(a) of the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021, and constitutes the privacy policy and, to that extent, part of the user agreement for the App. It is to be read with the SimulaFly App Terms and Conditions, which incorporate it by reference.
- 1.5 **How you accept this Policy.** Where the law requires your consent for processing, we obtain it through a clear affirmative act at or before the point of collection; for example, ticking an unticked box at registration, tapping "I Agree", or switching on a feature-specific toggle, and not through pre-ticked boxes, silence or mere continued use. Your use of the App does not, by itself, constitute consent to any processing for which the law requires consent; it does, however, signify your acknowledgement that you have read and understood this Policy.
- 1.6 You may access this Policy at any time within the App (Settings > Privacy) and at – www.simulafly.com/privacy-policy-for-mobile-application. On request, and progressively within the App, this Policy and every consent notice will be made available in English and in the languages specified in the Eighth Schedule to the Constitution of India.

2. Definitions

In this Policy, unless the context otherwise requires:

- 2.1 "**Child**" means an individual who has not completed the age of eighteen years, as defined in s.2(f) of the DPDPA;
- 2.2 "**Consent Manager**" means a person registered with the Data Protection Board of India under the DPDPA who acts as a single point of contact enabling a Data Principal to give, manage, review and withdraw consent through an accessible, transparent and interoperable platform;
- 2.3 "**Data Fiduciary**" means the person who, alone or in conjunction with others, determines the purpose and means of processing of personal data (s.2(i), DPDPA), for the App, SimulaFly;
- 2.4 "**Data Principal**" means the individual to whom personal data relates and, where that individual is a Child, includes their parent or lawful guardian (s.2(j), DPDPA) i.e., you;
- 2.5 "**Data Protection Board**" or "**Board**" means the Data Protection Board of India established under S.18 of the DPDPA by Notification G.S.R. 844(E) dated 13 November 2025;
- 2.6 "**DPDPA**" means the Digital Personal Data Protection Act, 2023, and "**DPDP Rules**" means the Digital Personal Data Protection Rules, 2025, each as in force from time to time;
- 2.7 "**Merchant**" means a third-party retailer, brand, store or service provider whose storefront, catalogue, products or services are discoverable or transactable through the SimulaFly platform;
- 2.8 "**Personal Data**" means any data about an individual who is identifiable by or in relation to such data (s.2(t), DPDPA);
- 2.9 "**Personal Data Breach**" means any unauthorised processing of personal data or accidental disclosure, acquisition, sharing, use, alteration, destruction or loss of access to personal data that compromises its confidentiality, integrity or availability (s.2(u), DPDPA);
- 2.10 "**Processing**" means a wholly or partly automated operation or set of operations performed on digital personal data, including collection, recording, organisation, structuring, storage, adaptation, retrieval, use, alignment or combination, indexing, sharing, disclosure by transmission, dissemination or otherwise making available, restriction, erasure or destruction (s.2(x), DPDPA);

- 2.11 **"Sensitive Personal Data or Information"** or **"SPDI"** has the meaning in Rule 3 of the SPDI Rules and includes passwords and financial information such as payment instrument details;
- 2.12 **"Services"** means the features and functions of the App, including AI-assisted room styling and visualisation, the AI design assistant, product and store discovery, cart, enquiries, bookings and orders, the Token wallet, and related support;
- 2.13 **"Tokens"** means the closed-system digital credits described in the SimulaFly App Terms and Conditions, redeemable only against SimulaFly's own digital services;
- 2.14 **"User Content"** means content you submit through the App, including room photographs, images, scans, prompts, preferences, chat messages, reviews and feedback.

3. Who We Are and Who To Contact

- 3.1 SimulaFly is the Data Fiduciary for all Personal Data processed through the App. We are accountable for compliance with applicable data-protection law in respect of processing undertaken by us or on our behalf by data processors (s.8(1), DPDPA).
- 3.2 We have appointed a Grievance Officer, who is also the person able to answer your questions about the processing of your Personal Data:

Grievance Officer	Shourya Pratap
Email	<i>support@simulafly.com</i>
Postal address	Simula Technologies LLP, Seat No. FFSD/50, Plot No. 20, Block H-1/A, Sector 63, Noida 201301, Uttar Pradesh, India
Working hours	Monday to Friday, 09:00–18:00 IST (excluding public holidays)
First response	Acknowledgement within 24 hours of receipt

- 3.3 The Grievance Officer's contact details are also published on the App's home screen menu and at www.simulafly.com, and will be repeated in every response we send to a rights request, in accordance with Rule 9 of the DPDP Rules.

4. Personal Data We Collect

- 4.1 We collect Personal Data from three sources: (a) data you provide; (b) data generated or collected automatically when you use the App; and (c) data received from third parties. We collect only such Personal Data as is necessary for the specified purposes in Section 5 (S.6(1), DPDPA; SPDI Rule 5(2)).

4.2 Data you provide

- Account and profile data:** name; mobile number; email address; login credentials (your password is stored only in salted, hashed form); profile photograph (optional); city, state, country and PIN code; saved addresses; stated preferences;
- Room and image data:** photographs of your rooms or spaces, camera captures, room scans, reference images and other visual inputs you choose to upload for room understanding and visualisation;
- Design inputs:** room dimensions, style preferences, colour choices, budgets, product selections and prompts you give the AI design assistant;
- Communications:** in-app chat with the AI assistant or with support; enquiries and messages to Merchants sent through the App; feedback, reviews and survey responses;
- Parental consent data:** where an account is operated by a Child, the parent or guardian's name, contact details and the identity or age details (or virtual token reference) used to verify parental consent (Section 14).

4.3 Data collected automatically

- Usage and interaction data:** features used; screens viewed; searches; products, designs and Merchant listings viewed, saved or shortlisted; cart actions; booking and enquiry events; session timestamps and duration;
- Generated content and AI interaction data:** AI-generated room previews, design suggestions and chat outputs, and your interactions with them;

- c) **Transaction and wallet data:** Token purchases, Token balance and deductions, and Token accruals (including the sign-up bonus, Reward Tokens for confirmed orders and tokens earned by viewing advertisements), booking and order records, order status, refund status and payment status. We do **not** collect or store your card number, CVV, UPI PIN, net-banking credentials or other payment-instrument details; payments are processed by Reserve Bank of India-authorized payment systems and payment aggregators, and we receive only confirmation of payment outcome together with a masked reference (such as the last four digits of a card and the issuing bank's name) where provided by the payment aggregator;
- d) **Device and technical data:** device model and manufacturer; operating system and version; App version; IP address; device identifiers (including the resettable advertising identifier only with your consent); language and time-zone; crash logs, performance diagnostics and security event logs;
- e) **Approximate location data:** country and area-level location inferred from your IP address and device time-zone, and, where you grant the location permission, approximate location from your device for store discovery. We do not collect precise GPS coordinates; if a future feature requires precise location, we will ask for separate, specific consent at that time.

4.4 Device permissions

The App requests the following permissions on a just-in-time basis, only when you first use the feature that needs them, never in bulk at installation. You may grant or revoke any permission at any time in your device settings (iOS: Settings > Privacy & Security; Android: Settings > Apps > SimulaFly > Permissions); revocation disables only the dependent feature.

Permission	When requested	Purpose	Required?
Camera	When you start a room scan or capture	Capture images of your space for AI visualisation	Only for this feature
Photos / media	When you choose to upload an image	Share existing images with the design tools	Only for this feature
Microphone	When you tap the voice input button	Voice queries to the AI assistant	Only for this feature
Storage	When designs are cached or saved	Temporary caching and saving of design assets	Image features only
Notifications	At first relevant prompt	Booking updates, service alerts and, with consent, offers	Optional
Approximate location	When you use store discovery	Show nearby stores and availability	Optional

4.5 Data received from third parties

- a) **App store platforms** (Apple, Google): installation and update events, in-app purchase receipts and aggregated crash data, under their own terms;
- b) **Payment aggregators:** payment outcome, masked instrument reference and settlement status for your transactions;
- c) **Analytics providers:** aggregated usage and performance metrics;
- d) **Advertising partners:** only where you have consented to personalised advertising, attribution and measurement data.

4.6 Data we do not seek

The App is not designed to collect SPDI other than your password (stored hashed) and the limited financial information described in Clause 4.3. Please do not upload health records, biometric identifiers, or other persons' documents or photographs without their consent; if uploaded incidentally within room imagery, such content is processed only as part of the image you submitted and you remain responsible for having the right to share it.

5. Purposes of Processing and Lawful Grounds

- 5.1 We process Personal Data only for lawful purposes and only on the grounds the DPDPA recognises: your consent, or a "certain legitimate use", which permits processing of data for the specified purpose for which you voluntarily provided your data and have not objected. Where the SPDI Rules apply, SPDI is collected and disclosed only with consent.

Purpose	Personal Data used
Creating your account; authenticating you; operating core App features you request (room styling, AI assistant, discovery, cart, bookings, wallet)	Account and profile; design inputs; room and image data; usage; transaction and wallet
Generating AI room visualisations and design suggestions from your inputs	Room and image data; design inputs; AI interaction data
Store and product discovery near you	Approximate location; profile city/PIN
Personalising recommendations and discovery within the App	Usage and interaction; preference; AI interaction data
Buyer signals and intent indicators to Merchants (Section 8)	Masked identifiers; engagement signals; intent scores; unlocked profile fields on an Unlock Event
Token wallet, orders, bookings, refunds and receipts	Transaction and wallet; account; communications
Service communications (OTPs, booking and order updates, security alerts)	Contact; transaction; device
Marketing and promotional communications; personalised offers	Contact; preference; usage
AI model training and improvement using your content	User Content; AI interaction data (de-identified wherever feasible)
App analytics, diagnostics, crash reporting and performance	Device and technical; usage (aggregated/pseudonymised where feasible)
Security, fraud and abuse prevention; enforcing our Terms	Device and technical; usage; transaction; communications
Compliance with law, regulators, court orders; establishing or defending legal claims	Categories as required
Medical emergency, epidemic or disaster response affecting you	Account; location; device

- 5.2 If we propose to process your Personal Data for a new purpose not listed above, we will give you a fresh itemised notice and, where required, obtain fresh consent before doing so.

6. Notice, Consent, Withdrawal and Consent Managers

6.1 Notice.

Each request for consent is accompanied or preceded by an itemised notice, presented independently of other content, in clear and plain language, describing: (a) the Personal Data concerned; (b) the specified purpose and the goods, services or uses enabled; (c) how you may exercise your rights and withdraw consent; and (d) how you may complain to the Data Protection Board. You may read each notice in English or in any Eighth Schedule language.

6.2 Standard of consent.

Consent is free, specific, informed, unconditional and unambiguous, given by a clear affirmative action, and is limited to the Personal Data necessary for the specified purpose. We never bundle unrelated consents, never pre-tick boxes, and never make access to a feature conditional on consent that is not

necessary for that feature. Any part of a consent that would infringe this Policy or applicable law is void to that extent — for example, you cannot be asked to waive your right to complain to the Board.

6.3 Records.

We maintain verifiable records of every consent given, denied or withdrawn, and of the notices under which they were given, because the burden of proving valid notice and consent rests on us.

6.4 Withdrawal.

You may withdraw any consent at any time through Settings > Privacy > [Consent Dashboard](#) in the App, or by writing to support@simulafly.com. The ease of withdrawal is comparable to the ease of giving consent, a consent given by one toggle is withdrawn by the same toggle. Withdrawal does not affect the lawfulness of processing already carried out; on withdrawal we will, within a reasonable time, cease (and cause our processors to cease) the related processing unless another lawful ground requires its continuation, and the consequences of withdrawal (such as loss of a dependent feature) are limited to that feature.

6.5 Consent Managers.

Once the Consent Manager ecosystem registered with the Data Protection Board becomes operational (the registration framework commences in November 2026), you will be able to give, manage, review and withdraw consents for the App through a registered Consent Manager of your choice, and we will honour interoperability with such platforms.

6.6 No dark patterns.

Our consent and cancellation journeys are designed without false urgency, basket sneaking, confirm-shaming, forced action, subscription traps, interface interference, bait-and-switch, drip pricing, disguised advertisements, nagging, trick wording, hidden SaaS billing or rogue malware, consistent with the Guidelines for Prevention and Regulation of Dark Patterns, 2023.

7. AI Features, Model Improvement and Your Choices

7.1 You are interacting with AI.

The design assistant and visualisation tools are artificial-intelligence systems. The App identifies them as such, and AI-generated room previews and design images carry a visible "AI-generated visualisation" label and embedded provenance metadata. You must not remove or alter these labels or metadata.

7.2 How your inputs are used.

Images, prompts and chats you submit are processed to deliver the feature you requested, generating your visualisation or answering your query. Where generation is performed using vetted third-party AI infrastructure, your inputs are shared with that provider only under contracts restricting use to providing the service to us, and the App will clearly disclose, and seek your explicit permission for, any sharing of your Personal Data with a third-party AI service before it occurs.

7.3 Transient processing of imagery.

Original room images are processed to render your visualisation and are retained on our servers only as needed for the immediate feature (including your saved designs); unsaved originals are deleted or de-identified within [30] days.

7.4 Model improvement is opt-in.

We use your User Content and AI interaction data to train or improve our models only if you opt in at Settings > Privacy > Data & AI. The toggle is off by default. You may withdraw at any time with prospective effect: your data will be excluded from future training cycles; where content has already been incorporated into trained model weights, complete retroactive extraction may not be technically feasible, and we will tell you so on request. Child accounts are excluded from model training irrespective of settings.

7.5 Reporting AI content.

You can flag any offensive, unlawful or inaccurate AI output from within the App (long-press the image or message > Report), without leaving the App. Reports inform our content filtering and moderation.

7.6 No professional advice.

AI outputs are illustrative suggestions, not professional interior-design, architectural, structural, electrical or safety advice. Verify suitability, measurements, availability and pricing before acting, and see the Terms and Conditions for related disclaimers.

8. Merchant Data Sharing, Buyer Signals and Profile Unlocks

8.1 SimulaFly connects users with Merchants. To make that marketplace work, limited data flows to Merchants, but only as described in this Section, which reflects exactly how the platform operates.

8.2 Your identity is masked by default

Until an Unlock Event occurs, a Merchant sees you only as an anonymous or randomised buyer identifier or tag. Merchants do not receive your name, contact details, address or profile photograph by default, do not receive a list of the platform's users, and cannot browse user identities.

8.3 Signals shared with Merchants before any unlock

- a) purchase-probability or intent indicators relating to that Merchant's own inventory, displayed as percentages, scores or similar labels;
- b) room-visualisation activity, product saves, cart additions, repeat visits and similar engagement signals, in masked or aggregated form;
- c) your interactions with that Merchant's own listed inventory, catalogue views, enquiries, bookings and order status;
- d) order and fulfilment details connected to that Merchant's own products or services.

8.4 What Merchants never receive

A Merchant does not receive: your activity in relation to other Merchants' inventory or promotions; your unrelated browsing behaviour; or any competitor Merchant's interaction records. Each Merchant's access is limited to data relating to its own storefront, catalogue, customers, promotions, orders and support history.

8.5 Unlock Events- when identity is shared

Your identity and limited contact or profile details (name, contact channel, delivery details as relevant) are disclosed to a specific Merchant only on an "**Unlock Event**", being the earlier of: (a) you submitting an enquiry, booking, order or callback request to that Merchant; (b) you initiating chat or contact with that Merchant; (c) you expressly consenting in-App to share your profile with that Merchant; or (d) a transaction with that Merchant requiring fulfilment, delivery or after-sales service. Each Unlock Event is logged, visible to you in your Privacy Centre, and limited to the fields necessary for the interaction you initiated.

8.6 Merchant obligations and onward use

Merchants receive data under binding agreements that restrict use to serving your interaction, prohibit resale or further disclosure of your data, require security safeguards, and require deletion when the purpose is served. Upon an Unlock Event, the Merchant becomes independently responsible under applicable law for its own processing of the disclosed data; we contractually require Merchants to honour your rights requests routed through us.

8.7 Intent scores are estimates

Purchase-probability and intent indicators are statistical estimates generated from engagement signals. They are not statements of fact about you, are not guarantees of purchase, and are not used by SimulaFly to deny you access to the platform, to vary prices charged to you, or to produce any legal effect concerning you. If you believe a score-driven outcome has materially affected you, you may ask for human review through the Grievance Officer.

8.8 Your controls

- a) **Opt out of buyer-signal sharing** (masked signals and intent indicators) at Settings > Privacy > Merchant Signals, discovery features keep working, though Merchant-side responsiveness may reduce;

- b) review and revoke Merchant-specific disclosures in your Privacy Centre (revocation operates prospectively; data already disclosed on an Unlock Event remains with the Merchant subject to its obligations);

8.9 Child accounts are wholly excluded from intent scoring, buyer-signal sharing, behavioural profiling and Unlock-Event marketing.

9. Other Disclosures of Personal Data

9.1 We do not sell, rent or trade your Personal Data. Beyond what has been allowed under applicable laws, we disclose Personal Data only as follows, and only to the extent necessary:

- a) **Data processors** engaged under written contracts that bind them to process only on our instructions, apply security safeguards, and return or delete data when the engagement ends, including cloud hosting and infrastructure providers (which may include [Google Cloud], AI model infrastructure providers, communications and push-notification gateways, analytics providers, customer-support tooling and fraud-prevention services;
- b) **Payment aggregators and payment systems** authorised by the Reserve Bank of India, to process Token purchases and order payments; we never receive or store your full payment-instrument details;
- c) **App store platforms** (Apple, Google), which process installation, billing and crash data under their own privacy policies when you download the App or make in-app purchases;
- d) **Advertising and measurement partners**, only with your consent, limited to resettable advertising identifiers and campaign attribution data, never your room imagery or chat content;
- e) **Group entities and successors** affiliates under common control, and, in the event of a merger, acquisition, restructuring, financing or transfer of the SimulaFly business or undertaking, the counterparties and their advisers under confidentiality obligations; if such a transaction results in a change of the Data Fiduciary, the purposes of processing, or the operating structure described in this Policy, we will update this Policy, give you prior notice through the App, and obtain fresh consent where the law requires, before the change takes effect;
- f) **Authorities and courts** where disclosure is required by law, court order or direction of a competent authority, or where necessary to enforce our Terms, prevent fraud or protect the rights, property or safety of users, Merchants, the public or SimulaFly.

9.2 A current list of our material processors and SDKs is available from the Grievance Officer on request, and the in-App SDK schedule is at Settings > Privacy > Partners.

10. Cross-Border Transfers

10.1 SimulaFly is based in India and Personal Data is primarily stored and processed in India. Some processors (such as cloud, AI infrastructure or support tooling) may store or access Personal Data outside India.

10.2 We transfer Personal Data outside India only: (a) to territories not restricted by the Central Government by notification under DPDPA; (b) subject to any requirements the Central Government specifies by order regarding making personal data available to foreign states or their agencies; and (c) under contracts obliging the recipient to apply protection no less stringent than this Policy and Indian law, consistent with Rule 7 of the SPDI Rules (transfer only where necessary for performance of the contract with you or with your consent, and only to recipients ensuring the same level of protection).

10.3 Payment system data is stored in India by the RBI-authorised payment systems that process our transactions, in accordance with RBI directions. If localisation requirements are notified for any category of personal data we process, we will comply and update this Policy.

11. Retention and Erasure

11.1 We retain Personal Data only while it serves the purpose for which it was collected or as law requires, and then erase or irreversibly anonymise it. Indicative periods:

Category	Retention	Reason
Account and profile data	Life of account +[36] months	Limitation periods for claims; dispute resolution
Room images not saved by you	Up to[30] days	Transient processing only (Clause 7.3)
Saved designs and generated content	Until you delete them or your account closes	Your continued use
AI chat history	[24]months	Service continuity; quality
Usage and interaction data	[24] months, then aggregated/anonymised	Analytics; personalisation
Transaction, Token and order records	[8]years	Tax, accounting and audit law
Support and grievance records	[24] months from closure	Quality; statutory grievance evidence
Security and access logs	Minimum 1 year (ICT logs: 180 days within India)	DPDP Rules; CERT-In Directions
Parental-consent verification records	Life of the Child account + [36] months	Evidence of verifiable consent
Marketing preferences and consents	Until withdrawal + record of withdrawal	Proof of consent state

11.2 Inactivity erasure.

If you neither use the App nor exercise any right for three years, we will erase your Personal Data, after giving you at least 48 hours' prior notice to your registered contact so you can log in and keep your account. (We adopt this standard voluntarily; it binds, under the Third Schedule to the DPDP Rules, e-commerce entities with at least two crore registered users in India.)

11.3 On account deletion

Personal Data is deleted or anonymised within [30] days, except records we must keep by law (such as tax, transaction and grievance records, and security logs for their statutory periods), which are retained in cold storage, access-restricted, and deleted on expiry. Anonymised and aggregated data that can no longer identify you is outside this Policy and may be retained for analytics.

12. Security of Personal Data

12.1 We maintain a documented information-security programme with managerial, technical, operational and physical controls commensurate with the data we hold, aligned to IS/ISO/IEC 27001, including:

- encryption of data in transit (TLS) and at rest, with obfuscation, masking or virtual tokens applied to identifiers where appropriate;
- role-based access controls on a need-to-know basis, with multi-factor authentication for administrative access;
- logging, monitoring and review of access to Personal Data to detect, investigate and remediate unauthorised access, with logs retained for at least one year;
- data backups and continuity measures to maintain availability and integrity;
- secure development practices, vulnerability assessments and periodic penetration testing;
- contractual security obligations on every data processor; and
- personnel confidentiality undertakings and security training.

12.2 No system is absolutely secure. Keep your credentials confidential, enable a device screen lock, and tell us immediately at support@simulafly.com if you suspect unauthorised access to your account. We will never ask for your password or OTP outside the App's login interface.

13. Personal Data Breach Response

- 13.1 We operate an incident-response plan. On becoming aware of a cyber-security incident of a type notified by CERT-In (including data breach or data leak), we report it to CERT-In within six hours, and we preserve relevant logs.
- 13.2 In the event of a Personal Data Breach, we will intimate: (a) **each affected user** without delay, in clear and plain language, through your account and registered contact details, describing the nature, extent and timing of the breach, its likely consequences for you, the mitigation in progress, the safety steps you can take, and a contact for queries; and (b) the **Data Protection Board** without delay on becoming aware, with a detailed follow-up report within 72 hours (or such extended period as the Board permits), including the facts, circumstances, mitigation, findings about the person who caused the breach, remediation, and a report on the intimations given to affected users.
- 13.3 Where payment-related incidents are involved, we coordinate with the relevant payment aggregator and authorities under applicable RBI frameworks.

14. Children and Verifiable Parental Consent

- 14.1 A **Child** is any individual under 18 years. Children may use the App **only** through an account for which we have first obtained the verifiable consent of a parent or lawful guardian.
- 14.2 **How we verify.**
Before activating a Child account we verify that the consenting person is an identifiable adult parent or guardian, using: (a) reliable identity and age details already held by us; (b) identity and age details voluntarily provided by that person; or (c) a virtual token mapped to such details issued by an entity entrusted by law or government including details verified through a Digital Locker (Digi Locker) service provider. Verification records are retained as evidence.
- 14.3 **Protections applied to every Child account.**
We do not undertake tracking or behavioural monitoring of Children or targeted advertising directed at Children. Child accounts are excluded from: intent scoring and buyer-signal sharing (Section 8); personalised advertising; AI model training; and marketing communications. We do not process a Child's Personal Data in any manner likely to cause a detrimental effect on the Child's well-being. AI features available to Child accounts are configured to produce age-appropriate content.
- 14.4 **Age assurance.**
We may ask for limited information to confirm whether a user is a Child; such due-diligence processing is performed only for that purpose.
- 14.5 **Guardian rights and removal.**
The consenting parent or guardian may exercise all of the rights in Section 15 on the Child's behalf, including reviewing, correcting or erasing the Child's data and withdrawing consent (which closes the account). If we learn that we have processed a Child's Personal Data without verifiable parental consent, we will disable the account and delete the data without undue delay; please alert us at support@simulafly.com.

15. Your Rights and How to Exercise Them

- 15.1 Subject to applicable law, you have the following rights in respect of your Personal Data:
- a) **Access**
to obtain a summary of your Personal Data and of the processing activities undertaken, and the identities of all data fiduciaries and data processors with whom it has been shared, with a description of what was shared;
 - b) **Correction, completion and updating**
to have inaccurate or misleading data corrected, incomplete data completed, and data kept up to date;
 - c) **Erasure**

to have Personal Data erased where it is no longer necessary for the specified purpose, or upon withdrawal of consent, unless retention is required by law;

- d) **Withdrawal of consent**
at any time, with ease comparable to giving it;
- e) **Grievance redressal**
readily available means of redressal, which you should exhaust before approaching the Data Protection Board;
- f) **Nomination**
to nominate an individual who may exercise your rights in the event of your death or incapacity (Settings > Privacy > Nominee);
- g) **SPDI rights**
while the SPDI Rules remain in force: to review and correct the SPDI you have provided, to decline to provide SPDI, and to withdraw SPDI consent in writing (in which case we may be unable to provide the dependent Services).

How to make a request.

Use the in-App **Privacy Centre** (Settings > Privacy) or write to support@simulafly.com from your registered email, quoting your registered mobile number or user ID so we can locate your records. We verify identity before acting on a request and act only on requests made by you, your nominated person, or (for a Child) the verified parent or guardian.

Timelines.

We acknowledge rights requests within 24 hours and aim to complete them within 30 days. Our outer published period for responding to any rights request or grievance is 90 days; statutory periods that are shorter shall prevail.

Your duties.

When exercising rights you must not impersonate another person, suppress material information, or register a false or frivolous grievance or complaint, and you should furnish only information that is verifiably authentic when seeking correction or erasure.

- 15.2 If you are dissatisfied with our response, you may complain to the Data Protection Board of India (digitally, once its complaint mechanism is operational) and thereafter appeal to the Telecom Disputes Settlement and Appellate Tribunal, without prejudice to any other remedy available to you.

16. Account Deletion

- 16.1 You may delete your SimulaFly account: (a) **in the App** at Settings > Account > Delete Account; or (b) **on the web**, without reinstalling the App, at [www.simulafly.com/account/delete].
- 16.2 Deletion takes effect within [7] days of verified request (allowing for cancellation of in-flight orders and fraud checks). Unused paid Tokens are dealt with as stated in the Terms and Conditions. Thereafter your Personal Data is deleted or anonymised. Records we must retain by law are kept restricted and then deleted.
- 16.3 Deleting the App from your device does not delete your account.

17. SDKs, Cookies and Similar Technologies in the App

- 17.1 The App embeds a limited set of third-party SDKs for analytics, crash reporting, push notifications, payments and (with consent) advertising measurement. Each SDK is contractually bound as a processor or operates under its own disclosed policy where it acts independently (such as the app stores).
- 17.2 Identifier-based personalisation and advertising measurement operate only with your consent and honour your device's tracking-permission settings; you may reset your advertising identifier or withdraw consent at any time.
- 17.3 The current SDK schedule is available at Settings > Privacy > Partners and from the Grievance Officer.

18. Communications, Marketing Preferences and DND

- 18.1 **Service communications:** OTPs, security alerts, booking, order, wallet and delivery updates and policy notices, are sent as part of the Services through registered sender identities, and do not contain promotional content.
- 18.2 **Promotional communications** are sent only with your separate, unbundled opt-in consent, recorded through the consent frameworks prescribed under the Telecom Commercial Communications Customer Preference Regulations, 2018 (as amended), and only through registered headers and templates. A message mixing promotional with service content is treated as promotional and requires consent.
- 18.3 You may withdraw marketing consent at any time via Settings > Notifications, the unsubscribe link in any email, or support@simulafly.com, and for telecom channels you may additionally register preferences or complain via your operator's DND mechanisms. Withdrawal does not affect service communications necessary to your use of the App.
- 18.4 Push notifications are controlled by your device permission and Settings > Notifications; disabling them does not stop essential service messages by SMS or email.

19. Third-Party Services and Links

- 19.1 The App may display links to, or integrations with, third-party websites, apps and services (including Merchant pages and payment journeys). Those third parties process your data under their own policies; we encourage you to read them. We are not responsible for the privacy practices of services we do not control, and a link is not an endorsement.
- 19.2 If you disclose Personal Data in any public or shared feature (such as reviews), that disclosure is attributable to you; exercise care.

20. Changes to this Policy

- 20.1 We may update this Policy from time to time. The current version, with its effective date and version number, is always available in-App and at www.simulafly.com. We will notify you of material changes in advance through the App and your registered contact details, and we will inform users of changes to this Policy at least once a year, and of key terms periodically, in accordance with the IT Rules.
- 20.2 If a change introduces a new purpose of processing or materially expands data collection, we will provide a fresh itemised notice and obtain fresh consent where the law requires before the change applies to you. Continued use alone is not treated as consent to such changes

21. Grievance Redressal and Escalation

- 21.1 Raise any privacy or content concern with the Grievance Officer (Section 3). Every complaint receives a ticket number you can use to track status.

Matter	Timeline we follow
Acknowledgement of any complaint	Within 24 hours (consumer complaints in any event within 48 hours)
Content and policy-breach grievances (intermediary matters)	Resolved within 7 days of receipt
Requests to remove content covered by Rule 3(1)(b) of the IT Rules (other than third-party-rights, IP and other-law items)	Within 36 hours

Matter	Timeline we follow
Complaints of content showing nudity, sexual acts or impersonation including morphed images	Removal or disabling within 2 hours
Court orders / notified government directions	Within 3 hours
Consumer complaints (orders, refunds, service deficiencies)	Redressal within 1 month
Data-protection rights requests and grievances	Target 30 days; outer published period 90 days
SPDI grievances (while SPDI Rules in force)	Within 1 month

21.2 Appeals.

If you are dissatisfied with the Grievance Officer's decision on a content or platform grievance, or it is not resolved in time, you may appeal to the Grievance Appellate Committee at <https://gac.gov.in> within 30 days; we comply with GAC orders and publish compliance reports. For data-protection matters, after exhausting our redressal you may complain to the Data Protection Board of India; for consumer disputes you may approach the consumer commissions under the Consumer Protection Act, 2019 or use the National Consumer Helpline (1915). Nothing in this Policy limits any statutory remedy.

22. Governing Law, Framework and Interpretation

- 22.1 This Policy is governed by the laws of India. Subject to the statutory jurisdiction of the Data Protection Board, the Grievance Appellate Committee, the consumer commissions and any other authority with non-excludable jurisdiction, the courts at Noida, Uttar Pradesh have jurisdiction over disputes arising from this Policy.
- 22.2 SimulaFly processes Personal Data under, and this Policy is intended to satisfy: the Information Technology Act, 2000 (including s.43A) and the SPDI Rules, 2011; the Digital Personal Data Protection Act, 2023 and the DPD Rules, 2025 (whose substantive obligations we have adopted ahead of their phased commencement); the IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021, as amended; the Consumer Protection Act, 2019 and the Consumer Protection (E-Commerce) Rules, 2020; the TCCCPR, 2018; and directions of CERT-In and other competent authorities.
- 22.3 The App is intended for users in India. If you use the App from outside India, you do so on your own initiative; we apply the protections in this Policy to all users, and nothing in this Policy excludes mandatory protections of another jurisdiction where they apply to you by law.
- 22.4 If any provision of this Policy conflicts with mandatory applicable law, the law prevails and the remainder continues in effect. Nothing in this Policy limits any right you have, or any obligation we bear, under mandatory applicable law.